

IN THE HIGH COURT OF SOUTH AFRICA
GAUTENG DIVISION, PRETORIA

Case No.: 2025/137857

In the matter between:

PETER ANDREW FAUCITT
(Identity Number: 520430 5708 18 5)

APPLICANT

And

JACQUELINE FAUCITT
(Identity Number: 570607 0898 18 1)

FIRST RESPONDENT

DANIEL JAMES FAUCITT
(Identity Number: 820715 5300 18 2)

SECOND RESPONDENT

**REGIMA WORLDWIDE DISTRIBUTION
(PTY) LTD**
(Registration Number: 2011/005722/07)

THIRD RESPONDENT

REGIMA SKIN TREATMENTS CC
(Registration Number: 1992/005371/23)

FOURTH RESPONDENT

VILLA VIA ARCADIA NO 2 CC
(Registration Number: 1996/004451/23)

FIFTH RESPONDENT

STRATEGIC LOGISTICS CC
(Registration Number: 2008/136496/23)

SIXTH RESPONDENT

IN RE:

PETER ANDREW FAUCITT
(Identity Number: 520430 5708 18 5)

APPLICANT

And

JACQUELINE FAUCITT
(Identity Number: 570607 0898 18 1)

FIRST RESPONDENT

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(Registration Number: 1996/004451/23)

FIFTH RESPONDENT

STRATEGIC LOGISTICS CC
(Registration Number: 2008/136496/23)

SIXTH RESPONDENT

**FIRSTRAND BANK LTD t/a FIRST
NATIONAL BANK**

SEVENTH RESPONDENT

ABSA BANK LIMITED

EIGHTH RESPONDENT

**THE COMPANIES AND INTELLECTUAL
PROPERTY COMMISSION**

NINTH RESPONDENT

**SUPPLEMENTARY FOUNDING AFFIDAVIT
(FOR PART B OF THE NOTICE OF MOTION)**

I, the undersigned,

PETER ANDREW FAUCITT,

do hereby make oath and say:

1.

1.1 I am a major businessman, with Identity Number 520430 5708 18 5.

- 1.2 I am resident at 30 Norman Road, Bedfordview, Johannesburg.
- 1.3 The facts herein contained fall within my personal knowledge, unless otherwise stated or as may otherwise appear from the context in which they are stated and are, to the best of my knowledge, both true and correct.
- 1.4 I am one of the third respondent's directors, and I am a member of the fourth, fifth, and sixth close corporations.
- 1.5 I have been involved personally, and continuously with the subject-matter of this application.
- 1.6 I am accordingly able to confirm, as I hereby do, that the contents of this affidavit fall within my personal knowledge, unless otherwise stated or as may otherwise appear from the context in which they are stated and are, to the best of my knowledge, both true and correct.
- 1.7 Any submissions of a legal nature are made on the advice of my legal representatives, which advice I have accepted as being true and correct, and upon which I act accordingly.
- 1.8 The contents of the documents to which reference is made herein must be read, with respect, as if specifically incorporated, and repeated herein.

- 1.9 This affidavit must, with respect, be read together with the affidavits filed of record.

2.

2.1

- 2.1.1 The first respondent is my wife, **JACQUELINE FAUCITT**, a major businesswoman with Identity Number 570607 0898 18 1, who is resident at 20 River Road, Morning Hill, Bedfordview, Johannesburg.

- 2.1.2 The first respondent is a director of the third respondent, and a member of the fourth, fifth, and sixth respondents.

2.2

- 2.2.1 The second respondent is my son, **DANIEL JAMES FAUCITT**, a major businessman, with identity number 820715 5300 18 2, who is resident at Suite No 132, Nicol Hotel, Corner Nicol Road and Skeen Boulevard, Bedfordview, Johannesburg,

- 2.2.2 The second respondent is a director of the third respondent, and a member of the sixth respondent.

- 2.3 The third respondent is **REGIMA SKIN TREATMENTS CC**, a close corporation duly registered in terms of the Laws of the Republic of South Africa, with registration number 1992/005371/23, and registered address at 20 River Road, Morning Hill, Bedfordview.
- 2.4 The fourth respondent is **REGIMA WORLDWIDE DISTRIBUTION (PTY) LTD**, a for-profit company with limited liability, duly registered in terms of the Laws of the Republic of South Africa, with registration number 2011/005722/07, and with registered address at 20 River Road, Morning Hill, Bedfordview.
- 2.5 The fifth respondent is **VILLA VIA ARCADIA NO 2 CC**, a close corporation duly registered in terms of the Laws of the Republic of South Africa, with registration number 1996/004451/23, and with registered address at 20 River Road, Morning Hill, Bedfordview.
- 2.6 The sixth respondent is **STRATEGIC LOGISTICS CC**, a close corporation duly registered in terms of the Laws of the Republic of South Africa, with registration number 2008/136496/23, and with registered address at 20 River Road, Morning Hill, Bedfordview.
- 2.7 The third to sixth respondents are cited herein for the interest they have in this application; accordingly, no relief is sought against them save for costs, in the event that they may oppose this application.

3.

- 3.1 This Honourable Court has the necessary jurisdiction to adjudicate this application.
- 3.2 On 19 August 2025, I was constrained to make application ("***the main application***") to this Court, under this case number, on an urgent *ex parte* basis.
- 3.3 An order was granted therein, which allowed for the filing of this supplementary affidavit, on 19 August 2025 — I attach a copy of that order hereto, marked as "**PF36**".
- 3.4 To date hereof, the main application remains pending; all that the first and second respondents have done is file a notice of intention to oppose (dated 5 September 2025).

4.

- 4.1 **Part B** of the aforesaid application pertains only to the first and second respondents, to whom I refer collectively as "the respondents", in the paragraphs below.
- 4.2 **Part B** seeks that the respondents be declared delinquent directors and/or be placed under probation in terms of the Companies Act.

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- 4.3 The investigation in terms of **Part A** (and the agreements between the parties) has been concluded.

5.

- 5.1 I attach hereto a copy of the forensic report in this regard, as annexure "PF37".

- 5.2 The following is the most notable from the report, *inter alia*:

5.2.1 The 'computer' expenses accrued by the first and second respondents amounts to R10,847,862.00;

5.2.2 The aforesaid expenses cannot be substantiated or accounted for;

5.2.3 The increase in expenditure is unrelated to turnover or profit;

5.2.4 The expenditure cannot be substantiated at all;

5.2.5 The expenditure cannot be accounted for to the South African Revenue Services;

5.2.6 There is a risk of fraud and duplicate payments, given that the expenses are unfounded.

5.3 Respectfully, the report confirms my worst fears, and the fact that the entities have suffered enormous losses for amounts which, contrary to any other evidence, the respondents have simply embezzled, and squandered.

6.

6.1 The relief sought is, with respect, warranted accordingly.

6.2 An order for the removal of the respondents as directors/members is also warranted in the circumstances.

7.

AD COSTS

7.1 Costs are only sought in the event that this application is opposed.

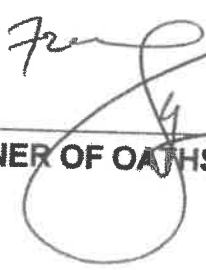
7.2 This application has, with respect, been launched in the interests of all the parties hereto.

WHEREFOR I PRAY, WITH RESPECT, FOR AN ORDER IN TERMS OF THE
NOTICE OF MOTION

DATED AT BEDFORDVIEW ON 16th MARCH 2026


DEPONENT

I CERTIFY THAT THE DEPONENT HAS ACKNOWLEDGED THAT HE KNOWS AND UNDERSTANDS THE CONTENTS OF THIS AFFIDAVIT, WHICH WAS SIGNED AND SWORN BEFORE ME AT BEDFORDVIEW ON 2026-03-16 MARCH 2026; THE REGULATIONS CONTAINED IN GOVERNMENT NOTICE NO. R 1258 OF 21 JULY 1972, AS AMENDED, HAVING BEEN COMPLIED WITH—THE DEPONENT HAVING ACKNOWLEDGED THAT HE UNDERSTANDS THE CONTENTS OF THIS AFFIDAVIT, HAS NO OBJECTION TO TAKING THE PRESCRIBED OATH AND CONSIDERS THE OATH TO BE BINDING ON HIS CONSCIENCE


COMMISSIONER OF OATHS

